

PHOTIFY

MEMBERSHIP AGREEMENT AND TERMS OF SERVICE

Version 1.3 | Effective Date: 03/06/2026

Subject to the Laws of the Republic of Turkey

Turkish Code of Obligations No. 6098 | Law on Consumer Protection No. 6502 | Law on Regulation of Electronic Commerce No. 6563 | Law on Protection of Personal Data No. 6698

IMPORTANT NOTICE: Please read this Membership Agreement and Terms of Service carefully before using the Photify application. Your commencement of use of the Application, creation of an account, or participation in an event signifies that you have read, understood, and accepted all provisions of this Agreement. IF YOU DO NOT ACCEPT THE TERMS OF THIS AGREEMENT, DO NOT USE THE APPLICATION AND DO NOT CREATE AN ACCOUNT.

As Photify is a service operating through AI-powered facial recognition technology, your biometric data is subject to processing. In this context, you acknowledge that in addition to this Agreement, you are also bound by the "Personal Data Protection and Privacy Policy" (KVKK & GDPR Privacy Notice).

ARTICLE 1 — PARTIES

This Agreement has been entered into between the two parties whose information is set out below:

1.1 Platform Operator

Full Name	Furkan Sönmez
Address	Vadi Istanbul Park Etabı, Ayazağa, Kemerburgaz Cd. D:7A Blok, 34475 Sarıyer/İstanbul
E-mail	info@photify.studio
Website	www.photify.studio

1.2 Member

A natural person who has attained the age of 18, possesses full legal capacity, voluntarily registers with Photify, and approves this Agreement electronically ("Member" or "User").

The Platform Operator is currently operating as a natural person and reserves the right to transfer all rights and obligations arising from and to arise under this Agreement to a legal entity to be established or acquired in the future.

ARTICLE 2 — SUBJECT MATTER AND SCOPE

2.1 The subject matter of this Agreement is to determine the terms under which the Member may benefit from the services offered through the Photify mobile application and website ("Service" or "Services"), and to establish the rights and obligations of the parties.

2.2 Photify is a platform that automatically delivers event photographs to attendees using facial recognition technology. The scope of the Service includes: (a) creating and managing events; (b) uploading and storing photographs; (c) AI-powered face matching; (d) presenting matched photographs to the user; and (e) payment and invoicing operations.

2.3 The Member is deemed to have accepted all provisions of the Personal Data Protection and Privacy Policy (KVKK & GDPR Privacy Notice), Cookie Policy, Cancellation and Refund Policy, and any other annexes published by Photify from time to time, in addition to this Agreement.

ARTICLE 3 — DEFINITIONS

- **Application:** The mobile application software offered by Photify for iOS and Android operating systems.
- **Website:** The official Photify website accessible via the photify.studio domain and its sub-domains.
- **Channels:** The Application, Website, and other digital channels through which Photify offers its services.
- **Service:** All functions and features offered by Photify through the Channels.
- **Event:** Organisations such as weddings, engagement ceremonies, graduation ceremonies, birthday parties, corporate meetings, and festivals.
- **Event Owner / Organiser:** The authorised Member who creates events on Photify, uploads photographs, and manages the event.
- **Attendee:** A Member who attends an event and accesses their own photographs via Photify.
- **Selfie / Facial Reference Image:** The Member's own facial image shared for the purpose of face matching.
- **Face Vector:** A numerical representation (face embedding) extracted from the selfie that cannot be reverse-engineered to the original photograph.
- **Content:** Any digital content, including photographs, videos, text, and comments, uploaded or created by the Member or Photify on the Channels.
- **KVKK:** Law No. 6698 on the Protection of Personal Data.
- **GDPR:** EU Regulation 2016/679 General Data Protection Regulation.

ARTICLE 4 — MEMBERSHIP CONDITIONS AND ACCOUNT CREATION

4.1 — Age Requirement

Only natural persons who have attained the age of 18 and possess full legal capacity may become members of Photify. The Member expressly declares and undertakes at the time of registration that they are over 18 years of age. Use of Photify by persons under the age of 18 is prohibited; where detected, the relevant account will be immediately closed and data deleted.

4.2 — Accurate Information

The Member is obligated to provide the information requested at the time of registration accurately, up-to-date, and completely. All liability arising from inaccurate, incomplete, or misleading information rests with the Member. Where information changes, the Member is obligated to update their information without delay.

4.3 — Account Security

The confidentiality of the Member's account username and password is entirely the Member's responsibility. All legal and criminal liability for operations conducted from the Member's account rests with the Member. The Member is obligated to immediately notify Photify upon becoming aware of any unauthorised access to their account.

4.4 — Non-Transferability of Account

Transfer, sale, or sharing of membership rights with third parties is prohibited. Membership is personal and may only be used by the account holder.

4.5 — Single Account

A natural person may create only one account. Where multiple accounts are created, Photify reserves the right to suspend or delete additional accounts without prior notice.

4.6 — Verification

Photify may request verification of identity or contact information via SMS, e-mail, or other means at or after the membership stage. Accounts where verification cannot be confirmed may be suspended.

ARTICLE 5 — FACIAL RECOGNITION TECHNOLOGY AND BIOMETRIC DATA

5.1 — Nature of the Service

The Photify Service operates through AI-powered facial recognition technology. The Member agrees to provide a selfie/facial image for the use of this technology. A mathematical face vector (face embedding) is extracted from the facial image, and matching with faces in event photographs is performed via this vector.

5.2 — Requirement for Explicit Consent

As the facial image and face vector constitute special categories of personal data within the meaning of KVKK Art. 6 and GDPR Article 9, processing of such data is possible only with the EXPLICIT CONSENT of the Member. Explicit consent is obtained on a separate, granular screen during the account creation flow, and the Member may withdraw such consent at any time.

5.3 — Withdrawal of Explicit Consent

The Member may withdraw their explicit consent for biometric data processing at any time via the Settings > Privacy > My Consents menu or by written application to kvkk@photify.studio. Upon withdrawal of explicit consent:

- The Member's face vector and facial reference image will be deleted within at most 7 days
- Matching operations conducted prior to withdrawal remain valid
- As the Service cannot be fully utilised without facial recognition, the core functionalities of the account may be restricted

5.4 — Algorithm Error Margin

AI-powered facial recognition systems are not infallible. Photify exercises the necessary care for the matching algorithm to operate with reasonable accuracy; however, no guarantee of 100% accuracy is given. Where an incorrect or incomplete match is identified, the Member may request correction via the Application or through support channels.

5.5 — Automated Decision-Making

The face matching process is a mathematical calculation performed solely for the purpose of presenting event photographs to you; it does not constitute a decision producing legal effects or similarly significantly affecting the individual. The possibility of manual review and correction is always available.

5.6 — Restrictions on Use of Facial Data

Photify uses the Member's face vector:

- SOLELY for matching with that Member's event photographs
- NOT for advertising, profiling, behavioural analysis, or marketing
- NOT shared with, sold to, or transferred to third parties (except in cases of statutory obligation)
- NOT for model training or development of any other AI product

5.7 — Differentiation of Consent Types

The facial recognition feature is subject to a separate, granular, and freely given explicit consent for biometric data provided by the Member. This explicit consent is entirely independent from consent that may be processed for marketing, advertising, campaign, targeting, cookie/analytics tracking, third-party SDK tracking (including IDFA / App Tracking Transparency), commercial electronic messages (e-mail, SMS, push), and other purposes.

The Member is not required to grant marketing or tracking consent when granting explicit consent for biometric data; likewise, each consent type may be granted or withdrawn independently of the others. Non-granting or withdrawal of marketing permissions does not prevent use of the facial recognition feature; likewise, withdrawal of biometric consent does not revoke marketing permissions. The detailed scope, legal basis, and method of withdrawal of each consent type are set out in the Personal Data Protection and Privacy Policy and the Cookie Policy.

5.8 — Alternative Access and Status Following Withdrawal of Consent

The Member may withdraw explicit consent for biometric data processing at any time. Upon withdrawal of consent, the automatic photo matching feature via facial recognition becomes unavailable to the Member; the existing face vector data will be deleted within the periods specified in the Personal Data Protection and Privacy Policy.

Even where automatic face matching is unavailable, the Member may request service access or assistance through the following alternative methods where applicable: (i) manual gallery access with an event-specific event code or invitation link; (ii) manual photo sharing request following identity verification upon application to the support team; (iii) direct visual delivery with the event organiser's approval. Where any of these alternatives are not technically or operationally feasible, this will be clearly communicated to the Member; in circumstances where no alternative can be provided, the Member's right to request termination of their account and subscription rights is reserved.

Non-provision or withdrawal of marketing, advertising, cookie/analytics tracking, ATT / IDFA, or commercial electronic message permissions does not affect use of the core face matching service; the scope and consequences of such permissions are separately explained in the relevant Policies.

ARTICLE 6 — THIRD PARTIES INCIDENTALLY PHOTOGRAPHED AT EVENTS

6.1 As Photify operates using facial recognition technology, photographs taken at events may incidentally contain the faces of third parties not registered with Photify or not direct attendees of the event.

6.2 — **Organiser's Responsibility.** The Event Owner / Organiser bears responsibility for fulfilling the necessary notification obligations and obtaining explicit consent where required under KVKK and other applicable legislation with respect to persons who will be photographed at the event. Photify is not responsible for the fulfilment of this obligation.

6.3 — **Photify's Approach.** Photify does not retain the face vectors of third parties not registered on the system who incidentally appear in the frame in event photographs; matching is performed solely for active Members' face vectors.

6.4 — **Third-Party Complaints.** Persons appearing in event photographs who are uncomfortable with being displayed may apply to kvkk@photify.studio to request removal of the photograph from publication or blurring of their face. Such requests will be concluded within at most 30 days, and sooner where possible.

6.5 — **Liability.** The Member undertakes to hold Photify harmless from all claims arising from disputes regarding the rights of third parties who appear in the frame. Photify shall not be held liable for damages arising from this situation, provided there is no fault on its part.

ARTICLE 7 — RIGHTS AND OBLIGATIONS OF THE MEMBER

7.1 The Member is obligated to use the Service in accordance with this Agreement and applicable legislation.

7.2 The Member declares, undertakes, and warrants that photographs and videos uploaded by them:

- Belong to them in copyright or that they hold an authorised licence
- Do not infringe personal rights
- Carry the necessary consents of persons appearing in the frame
- Are not contrary to law, morality, or public order
- Do not contain defamation, profanity, harassment, discrimination, or hate speech
- Do not contain obscene content, violence, or child abuse material
- Do not infringe the trademarks, trade secrets, or confidential information of third parties

7.3 The Member accepts, declares, and undertakes not to use the Service for the following purposes:

- Unauthorised data collection, data mining, scraping, or bot access
- Creating fake accounts or impersonating others
- Using viruses, malicious code, or exploits that threaten system security
- Reverse engineering or attempting to extract source code
- Creating excessive load (DoS) that would disrupt the normal operation of the Service
- Sending spam or chain messages
- Collecting user information without authorisation
- Using the Service for commercial, unlawful, or unethical purposes
- Engaging in conduct that damages the reputation or goodwill of Photify

7.4 The Member undertakes not to engage in harassment, insult, threat, or discriminatory conduct towards Photify employees, support personnel, or other Members.

7.5 The Member acknowledges that all legal and criminal liability arising from any conduct in breach of the above obligations rests with them, and holds Photify harmless from claims in this regard.

ARTICLE 8 — INTELLECTUAL PROPERTY RIGHTS

8.1 — Rights Belonging to Photify. All software, design, trade marks, logos, trade names, trade dress, databases, algorithms, and other intellectual property rights on the Channels belong to Photify or are used by Photify within the scope of a licence right. The Member is granted only a limited, non-exclusive, non-transferable right of use for the duration of this Agreement.

8.2 — Ownership of Member Content. Copyright in photographs, videos, and other content uploaded by the Member to the Channels continues to belong to the Member or the actual rights holder. Photify makes no claim of ownership over such content.

8.3 — Limited Licence Granted to Photify. The Member grants Photify, in respect of content uploaded to the Channels, a limited right of use valid for the period during which the Service is provided, worldwide, royalty-free, with the right to sub-licence, solely for the purposes of delivering, storing, displaying, matching, enabling download, and sharing within the event. This licence does not cover the right to use the content by Photify for advertising or marketing purposes; separate written consent of the Member is obtained for such use.

8.4 — Outside Scope of Licence. Photify will not use Member content:

- For advertising or marketing purposes (without separate consent of the Member)
- Sold or transferred to third parties
- For AI model training
- Shown to persons outside the event

8.5 — Deletion of Content. The Member may delete their own content at any time from within the Application. For bulk content uploaded by the Event Owner, deletion requests may be submitted through support channels.

8.6 — Notification of Rights Infringement. If you believe that any content infringes your copyright or any other right, you may apply to ihlal@photify.studio under the Notice and Takedown procedure. Photify will review content constituting rights infringement within at most 7 business days and, where necessary, remove it.

ARTICLE 9 — SERVICE FEES AND PAYMENT

9.1 — Pricing. Photify's core services may be offered free of charge; certain premium features or event packages may be subject to fees. Applicable fees, package contents, and payment terms are announced via the Application and Website.

9.2 — Payment Method. Payments are made via credit card, debit card, or alternative payment methods through a BDDK-licensed and PCI-DSS compliant payment service provider (e.g., Iyzico). Photify does not store card details; card details are transmitted directly to the payment provider.

9.3 — Taxes. Unless expressly stated otherwise, quoted fees are inclusive of VAT. Local taxes may differ for overseas users.

9.4 — Invoice. An e-invoice or e-archive invoice is issued to the Member within the framework of tax legislation. The Member is obligated to provide accurate invoicing information.

9.5 — Payment Failure. In the event of failure to receive payment, card rejection, or cancellation, Photify reserves the right to suspend or cancel access to paid services.

9.6 — Automatic Renewal (Subscription). Where a subscription-based package has been purchased, the subscription will automatically renew at the end of the subscription period. You may cancel automatic renewal at any time via the Settings > Subscription menu; the cancelled subscription will expire at the end of the current period and you will not be charged for the next period.

9.7 — Price Changes. Photify reserves the right to change service fees. Price changes relating to active subscriptions will be notified to the Member at least 30 days in advance; the Member may cancel their subscription free of charge if they do not accept the price change.

9.8 — Classification of Purchase Types

Paid products and services offered on Photify are classified in the following main categories:

- Premium Subscription: A package providing access to advanced features, auto-renewing on a monthly or annual basis.
- In-App Digital Credits (Photi Credits, etc.): Consumable digital units purchased in advance for use in specific in-app features, consumed in a single transaction.
- Event Package: A single-purchase package containing photo upload/storage capacity and matching limits for a specific event.
- App Store / Google Play In-App Purchases (IAP): Subscriptions, credits, or single purchases made through the iOS or Android application using the relevant platform's payment infrastructure.
- Web-Based B2B / Organiser Packages: Packages offered for corporate customers or event organisers through the photify.studio website, which may be subject to special contractual terms.

The scope, terms of use, and refund procedure for each purchase type are regulated in detail in the Cancellation and Refund Policy.

9.9 — Purchases Made via App Store and Google Play

Subscriptions, credits, or single purchases made through the iOS application are governed by the Apple App Store's payment infrastructure, sales terms, and refund policy; purchases made through the Android application are governed by Google Play's payment infrastructure, sales terms, and refund policy. In such purchases:

- Subscriptions are managed via the user's Apple ID or Google account; they auto-renew, and cancellation is made through the relevant platform's settings.
- Photify may not have the authority to make direct refunds for payments collected through the platform; refunds are subject primarily to the relevant platform's refund procedure.
- The Member may request guidance and reasonable assistance from Photify support channels during the refund process.

Detailed refund and cancellation rules for purchases made through the App Store and Google Play are regulated in the Photify Cancellation and Refund Policy.

ARTICLE 10 — RIGHT OF WITHDRAWAL, CANCELLATION, AND REFUND

10.1 — Right of Withdrawal. Pursuant to Law No. 6502 on the Protection of Consumers and the Distance Contracts Regulation, consumers have the right of withdrawal within 14 days of the date of purchase of digital content or services without giving any reason. However, the right of withdrawal may be limited in respect of “services the performance of which has commenced with the consumer’s consent” and “services performed instantly in electronic environments”.

10.2 — Where Service Has Been Consumed. Once services such as event creation, photo upload, and matching have commenced, the right of withdrawal applies to the unconsumed portion. No refund is made for services that have been fully consumed.

10.3 — Refund Request. A Member wishing to exercise the right of withdrawal or make a refund request shall apply to info@photify.studio or the in-app support channel within 14 days of the date of purchase. The request will be evaluated within at most 14 days; where approved, the refund will be made to the Member’s payment method within 14 days.

10.4 — Circumstances Where No Refund is Made. No refund is made in the following circumstances:

- Where the service has been fully consumed (e.g., the event has been completed and photographs distributed)
- Where the Member has lost their account due to unauthorised use or breach of the Agreement
- Where the service was provided as a promotion or gift
- Where the withdrawal period has elapsed

10.5 — Account Deletion. The Member may delete their account at any time from within the Application or by written request. Separately from account deletion, the rules of Article 10.3 apply for payment refunds.

ARTICLE 11 — SUSPENSION AND TERMINATION OF ACCOUNT

11.1 — Photify’s Right to Terminate. Photify may suspend or terminate the Member’s account without prior notice in the following circumstances:

- Material breach of this Agreement
- Upload of unlawful content
- Creation of fake accounts or identity impersonation
- Attempts to damage the Service infrastructure
- Harassment of other Members or employees
- Failure to fulfil payment obligations
- Attempts to circumvent Photify’s security measures
- Written request from competent authorities

11.2 — Notice and Right to Respond. Where possible, Photify will notify the Member of the reason for termination and allow the Member the opportunity to respond. Where there is an urgent and significant security risk, notification may be made subsequently.

11.3 — Member’s Right to Terminate. The Member may terminate the Agreement at any time without giving any reason by deleting their account. In respect of active paid subscriptions, the current payment period is completed; the refund situation is subject to the provisions of Article 10.

11.4 — Effect of Termination. Upon termination:

- The Member’s access to the Service is terminated
- Personal data is deleted or anonymised in accordance with the periods specified in the KVKK and GDPR Privacy Notice
- Data subject to statutory retention obligations continues to be retained for the relevant statutory period
- Rights and obligations of the parties accrued prior to termination are preserved

11.5 — Re-registration. A Member whose account has been terminated by Photify is prohibited from creating a new account using the same or different information.

11.6 — In-App Account Deletion Flow

The Member may delete their account at any time directly from within the application via the Settings > Account > Delete My Account menu, without giving any reason and without requiring an additional support request. This flow is always actively provided pursuant to Apple App Store Guideline 5.1.1(v) and analogous regulations.

Account deletion does not merely mean deactivation of the account. Upon account deletion:

- Personal data for which there is no statutory retention obligation is deleted or irreversibly anonymised.
- Biometric data (selfie and face vector) is deleted within at most 7 days.
- Account and identity information is removed from the production environment within at most 30 days; the deletion period from backups does not exceed 90 days.
- Data for which there is a statutory retention obligation relating to tax, invoices, and applicable legislation continues to be retained in restricted-access form for the periods provided by the relevant legislation.
- For purchases made via the application marketplace (App Store / Google Play) in respect of active payments and subscriptions, cancellation must be made separately via the relevant platform; account deletion alone may not result in subscription cancellation.

Detailed deletion periods for data categories, backup deletion procedures, and details relating to statutory retention obligations are regulated in the Personal Data Protection and Privacy Policy.

ARTICLE 12 — PROTECTION OF PERSONAL DATA

12.1 The Member's personal data is processed by Photify within the framework of KVKK, GDPR, and other applicable legislation. Processing details, legal bases, retention periods, and data subject rights are explained in detail in the "Personal Data Protection and Privacy Policy" published by Photify. This Policy document is an integral part of the Agreement.

12.2 — Explicit Consent for Biometric Data. A separate, explicit, and freely given consent of the Member is required for the processing of biometric data (facial image, face vector) processed within the scope of the Service operating through facial recognition technology. Explicit consent is obtained on a separate screen during the account creation flow and may be withdrawn at any time.

12.3 — Data Subject Rights. The Member may exercise their rights under KVKK Article 11 and GDPR Articles 15-22 through kvkk@photify.studio or the in-app application channel.

12.4 — Data Security. Photify applies industry-standard technical and administrative measures for the protection of personal data (AES-256 encryption, TLS 1.3, role-based access, penetration testing, etc.).

ARTICLE 13 — LIMITATION OF LIABILITY

13.1 — "As Is" Principle. The Service is provided by Photify with reasonable care on an "as is" and "as available" basis. Photify does not warrant that the Service will be uninterrupted, error-free, or fit for a particular purpose.

13.2 — Facial Recognition Accuracy. AI-powered facial recognition systems may err depending on factors such as image quality, lighting conditions, angle, and changes in appearance over time. Photify exercises the necessary care for the matching algorithm to operate with a reasonable accuracy rate; however, no guarantee of 100% accuracy is given. In respect of inconveniences arising from incorrect or incomplete matches, Photify shall be liable only to the extent of its own fault, provided that notification is made by the user within a reasonable period and the opportunity to correct the error is afforded.

13.3 — Third-Party Services. Photify is not responsible for interruptions, errors, or service quality of third-party infrastructure providers such as AWS, Iyzo, Netgsm, Apple, and Google, provided there is no fault on its part.

13.4 — Member Content. The accuracy, lawfulness, or quality of content uploaded by Members is not within Photify's control. Photify is not responsible for damages caused by Member content.

13.5 — Financial Liability Cap. Photify's total financial liability arising from this Agreement is limited to the total fees paid by the Member to Photify in the preceding 12 (twelve) months. Photify is not liable for indirect, consequential, punitive, or special damages; loss of profit, loss of data, or loss of business opportunity.

13.6 — Reservation of Statutory Rights. This Article does not limit liability arising from mandatory provisions of consumer protection law or from the wilful misconduct or gross negligence of Photify.

ARTICLE 14 — INDEMNIFICATION

14.1 The Member undertakes to indemnify and hold harmless Photify, its employees, directors, partners, and affiliates from and against all claims, actions, damages, costs, and reasonable attorney's fees that may arise from the following:

- The Member's breach of this Agreement
- Content uploaded by the Member infringing the rights of third parties
- The Member's unlawful conduct
- Damages caused to other persons by the Member in taking advantage of their relationship with Photify
- The Member's failure to obtain necessary consents from attendees in their capacity as event organiser

14.2 Photify reserves the right to assume the defence of claims directed at it; in this case, the Member will cooperate with Photify to a reasonable extent.

ARTICLE 15 — FORCE MAJEURE

15.1 Events beyond the reasonable control of the parties, such as natural disasters, earthquakes, floods, pandemics, war, civil unrest, acts of terrorism, strikes, lockouts, government decisions, internet infrastructure outages, cyber attacks, AWS/third-party infrastructure outages, and power outages, shall constitute force majeure.

15.2 During a force majeure event, neither party shall be held liable to the other for delayed or non-performance of an obligation.

15.3 If the force majeure event lasts for more than 30 days, the affected party shall have the right to unilaterally terminate the Agreement.

ARTICLE 16 — AMENDMENTS TO THE AGREEMENT

16.1 Photify reserves the right to unilaterally amend this Agreement. Material amendments will be notified to the Member at least 30 days in advance by e-mail and in-app notification.

16.2 Where the Member does not accept the amendments, they may close their account and terminate the Agreement. A Member who continues to use the Service following notification shall be deemed to have accepted the amendments.

16.3 For amendments requiring explicit consent (e.g., changes to the purpose of biometric data processing), new explicit consent will be obtained.

ARTICLE 17 — NOTIFICATION AND COMMUNICATION

17.1 Communications between the parties shall be made via the e-mail address, telephone number, or in-app notification channel provided by the Member at the time of registration.

17.2 Communications made by e-mail or in-app notification shall substitute written notice.

17.3 The Member is obligated to keep their contact information up to date. Photify is not responsible for notifications failing to reach the Member due to outdated/incorrect contact information.

17.4 Notifications to Photify shall be made to info@photify.studio or the registered business address.

ARTICLE 18 — ASSIGNMENT

18.1 The Member may not assign their rights and obligations arising from this Agreement to third parties without Photify's written consent.

18.2 Photify may assign its rights and obligations to the legal entity to be established or acquired by the Platform Operator in the future, its successor, or the new entity arising from structural changes such as mergers, transfers, or acquisitions, without requiring any notification or consent; such assignments do not affect the validity of the Agreement, and the new beneficiary of Photify assumes the obligations in the Agreement without modification.

ARTICLE 19 — VALIDITY OF RECORDS

The Member accepts, declares, and undertakes that the electronic records, log records, server records, e-mail correspondence, and database records maintained by Photify in its own systems in the event of disputes arising from this Agreement shall constitute valid, binding, conclusive, and exclusive evidence within the meaning of Article 193 of the Code of Civil Procedure (HMK); that they discharge Photify from the obligation to take an oath; and that this provision constitutes an evidence agreement.

ARTICLE 20 — APPLICABLE LAW AND JURISDICTION

20.1 The laws of the Republic of Turkey shall apply to the interpretation and implementation of this Agreement.

20.2 Istanbul (Çağlayan) Central Courts and Enforcement Offices shall have jurisdiction over the resolution of all disputes arising from or that may arise from this Agreement.

20.3 — Consumer Rights Reserved. For Members holding consumer status, the mandatory provisions of Law No. 6502 on the Protection of Consumers are reserved, and the Member's right to apply to the consumer arbitration committee or consumer court at their place of residence is not limited by this Agreement.

20.4 — EU Users. Consumers resident in the EU have the right to apply to consumer authorities in their place of residence; this right is not limited by this Agreement.

ARTICLE 21 — ELECTRONIC COMMUNICATION AND COMMERCIAL MESSAGE CONSENT

21.1 The Member agrees to the sending of service-related transactional notifications (order confirmation, invoice, information, security alert, etc.) by e-mail, push notification, and/or SMS. No separate consent is required for transactional communications.

21.2 — Commercial Messages. Commercial messages with marketing, campaign, or advertising content are sent only upon obtaining the Member's explicit consent, within the framework of Law No. 6563 on the Regulation of Electronic Commerce and the Message Management System (İYŞ) rules. The Member may withdraw their explicit consent at any time via İYŞ or from the Application settings.

21.3 The Member acknowledges that consents provided via electronic signature, click confirmation, fingerprint, or facial recognition constitute a valid and binding expression of will within the scope of the Code of Civil Procedure and Electronic Signature Law No. 5070.

ARTICLE 22 — SEVERABILITY

The invalidity, unlawfulness, or unenforceability of any provision of this Agreement shall not affect the validity and enforceability of the remaining provisions. The invalid provision shall, to the extent possible, be replaced with a valid provision closest to the economic purpose of the original provision.

ARTICLE 23 — ENTIRE AGREEMENT

This Agreement, together with the Personal Data Protection and Privacy Policy, Cookie Policy, Cancellation and Refund Policy, and other annexes, constitutes the entire agreement between the parties and supersedes all previous written or oral agreements.

ARTICLE 24 — ENTRY INTO FORCE

This Agreement enters into force on the date it is approved electronically by the Member and remains in force until the date on which one of the parties terminates the Agreement. By approving this Agreement, the Member declares that they have read, understood, and agree to be bound by all provisions of this Agreement.

Photify — Your memories are secure, your photographs reach the right person.

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